

any substantive opposition no later than nine (9) court days before the continued hearing date, and Plaintiff to file and serve any reply no later than five (5) court days before the continued hearing date. All sanctions issues are be reserved for the continued hearing.³

On June 9, 2026, the Court and parties will select a continued hearing date.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2407127	MARQUEZ VS MERCEDES-BENZ USA, LLC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling: The Court grants the motion in part. Plaintiff is awarded \$33,202.50 in fees and \$1,773.60 in costs.

Factual / Procedural Context:

This is a lemon law case. On May 10, 2022, Plaintiff Alexandria Marquez (“Plaintiff”) purchased a new 2022 Mercedes-Benz C Class C 300 (“Vehicle”) that was manufactured and distributed by Defendant Mercedes-Benz USA, LLC (“Mercedes” or “Defendant”). Plaintiff alleges that the Vehicle was delivered with serious defects and nonconformities to warranty. Plaintiff delivered the Vehicle to authorized repair agents on multiple occasions, but Mercedes and its authorized repair facilities, including Defendant Mercedes-Benz of Temecula (“Dealership”) were unable to cure the defects. Plaintiffs allege that Mercedes refused to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act (“Song Beverly Act”).

On December 20, 2024, Plaintiff filed her Complaint. She asserts four causes of action for: (1) Violation of the Song Beverly Act—Breach of Express Warranty; (2) Violation of the Song Beverly Act—Breach of Implied Warranty; (3) Violation of the Song Beverly Act Section 1793.2(b) and (4) Violation of Civil Code Section 1796.5.

Plaintiff now moves for \$33,702.50 in fees and \$1,1773,60 in costs (total \$35,476.10) as the prevailing party under the Song Beverly Act. Plaintiff argues that the rates and hours were reasonable and necessary. Plaintiff argues that the complexity of the case does not determine the reasonableness of the billing rate. Plaintiff argues that the reasonableness of the rates may be based on counsel’s affidavits without supporting evidence, although the rates requested are reasonable based on the United States Consumer Law Survey and Laffey Matrix. Plaintiff argues that the Court may not apply an across-the-board negative multiplier. Plaintiff argues that the hours incurred for the fee motion are recoverable. Plaintiff argues that she is entitled to costs and expenses.

³ Plaintiff seeks sanctions against Defendant in the amount of \$1,410.00.

Defendant argues that the fee request is unreasonable as to hours and rates. Defendant argues that the billing records reflect inefficiency due to the use of high billers for low level tasks, improper block billing and unnecessary work. Defendant challenges many specific billing entries. Defendant argues that the billing rates are unreasonable because the case is routine and not complex. Defendant argues that the reasonable rate for Riverside County is \$350/hour.

In her Reply, Plaintiff argues that Defendant did not satisfy its burden of showing that each of the challenged entries is improper based on legal citation and facts. Plaintiff argues that the list provided by Defendant is inaccurate and does not show who performed the work or the billing rate. Plaintiff argues that the records do not reflect block billing. Plaintiff argues that all hours were necessary. Plaintiff argues that Defendant has not established that \$350 is the reasonable rate for Riverside County. Plaintiff argues that the higher rates are justified by the contingency risk. Plaintiff argues that Defendant does not challenge any item of cost.

Analysis

Motion for Attorneys' Fees:

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code §1794(d).) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid.*)

Plaintiff asserts that on November 21, 2025, Plaintiff accepted Defendant's settlement offer of \$34,481.93. (Decl. of Acosta, ¶ 37.) The settlement also provided for attorney's fees and costs in an amount to be determined at a later date. (Id at ¶ 38.) Defendant does not appear to dispute that Plaintiff is the prevailing party.

Lodestar:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the

conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Furthermore, a declaration attesting to the accuracy of the fee bill is presumed credible. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal. App. 4th 359, 396.) While the verified fee bill is prima facie evidence of the hours and costs incurred, the trial court may make its own determination of the value of the services provided. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.) " In particular, ' the lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were ' reasonably spent' on the litigation' [Citation], and to determine the hourly rates that should be used in the lodestar calculus. [Citation.]" (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.)

Billing Rates:

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on its own experience in determining whether the hourly rate sought is reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*PLCM Group, Inc., supra*, 22 Cal. 4th at 1096.)

Plaintiff's counsel requests the following billing rates:

Billers:	Year Admitted:	Rate:	Hours:	Lodestar::
Attorney Acosta	2024	\$450	1.7	\$ 765.00
Attorney Greco	2014	\$595/hour	37.5	\$22,312.50
Attorney Urner	2017	\$525	7.8	\$4,095.00
Attorney Mora	2021	\$450	9.8	\$4,410.00
Attn. Poposyan	2016	\$450	1.5	\$675.00
Law Clerks		\$250	3.2	\$800.00
Paralegal		\$150	4.3	\$645.00
Total:			65.8	\$33,702.50

These rates are within the range of rates generally approved for Song Beverly Act cases in Riverside County.

Hours Incurred:

Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in

the trial court forfeits the claim on appeal.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendant argues that the fee request is unreasonable because Senior Attorney Greco billed the majority of the hours at the highest billing rate, even where the tasks could have been performed by less experienced attorneys at lower rates. While many of the legal tasks, like drafting discovery and discovery motions, likely could have been handled by junior-level associates, Defendant has not established that it was entirely unreasonable for Greco to do this work. However, some of the entries appear to involve work that is almost administrative, such as running a Carfax review, researching NHTSA databased, drafting a repair chronology and requesting financial documents from clients. The fee amount is reduced by \$500 for these entries. Otherwise, Defendant has not established that the fees were not reasonably incurred.

Defendant argues that the fee request should be reduced based on counsel's use of block billing. Block billing is generally an issue where apportionment of fees is required, which is not a concern in the present case. (*See Bell v. Vista Unified School Dist.* (2000) 82 Cal.App.4th 672, 689.) Moreover, the billing records contain sufficient detail to determine the reasonableness of the requested hours.

Overall, having reviewed the billing records, the hours appear to be reasonably incurred. Plaintiff is awarded \$33,202.50 in fees.

Litigation Costs:

Plaintiffs also request \$1,773.60 in litigation costs and expenses. “Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code §1794(d).) The additional term “expenses” was included in this section to cover items that would not otherwise be included in the detailed statutory definition of “costs” under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

“If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs.” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) In this case, Defendant has not objected to any items of costs. The costs appear to be necessarily incurred.

Attorney's fees and costs shall be paid no later than 30 days from the date of this order.